

Yogesh Kumar Porwar v. Kanpur Electricity Supply Company Limited (KESCO)

High Court of Judicature at Allahabad · Division Bench · 17 December 2020 · WRIT - C No. - 16248 of 2020 · **Writ dismissed; consumer relegated to clause 6.5 or CGRF regulation 7.10.**

HEADNOTE

A writ challenging electricity bills for arrears and current-year surcharge is not entertained where the consumer has a statutory alternative remedy under clause 6.5 of the Electricity Supply Code, 2005 or before the Consumer Grievance Redressal Forum under regulation 7.10 of the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007. The petition was dismissed on that ground.

FACTUAL SUMMARY

Yogesh Kumar Porwar, a consumer of Kanpur Electricity Supply Company Limited, approached the Allahabad High Court by writ petition challenging electricity bills demanded from October 2019 to June 2020. The challenge was confined to arrears of electricity charges till August 2019 and interest levied under the head 'surcharge current year'. Counsel for KESCO appeared after two November 2020 listings granted to complete instructions. The Division Bench heard the petition on 17 December 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative-statutory-remedy-billing-dispute

HOLDING

A writ petition disputing electricity bills, including arrears of charges till a prior period and interest levied as 'surcharge current year', is not to be entertained when the consumer has a statutory alternative remedy of approaching the competent authority under clause 6.5 of the Electricity Supply Code, 2005 or the Consumer Grievance Redressal Forum under regulation 7.10 of the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007. The writ is dismissed on the ground of that alternative statutory remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Bills for October 2019–June 2020 covering arrears till August 2019 and current-year surcharge were treated as a disputed-bill matter for the clause 6.5 statutory route, so the writ was not entertained. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The Court treated regulation 7.10 of the 2007 CGRF & Ombudsman Regulations as a concurrent statutory alternative to clause 6.5 for the same billing dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE OCTOBER 2019–JUNE 2020 BILLS, ARREARS TILL AUGUST 2019, AND SURCHARGE-CURRENT-YEAR LEVY

Merits of the demand were not examined; the writ was dismissed solely on alternative statutory remedy. ¶ 1

